IN THE CIRCUIT COURT OF THE FIFTH JUDICIAL CIRCUIT
IN AND FOR MARION COUNTY, STATE OF FLORIDA
CIVIL DIVISION

CASE NO.:

PATRICIA STROBO and
JOE STROBO,

Plaintiffs,

v.

WILLIAM RICHESON and
BLAC INVESTMENTS, INC.,

Defendants.
_____/

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COMPLAINT FOR DAMAGES AND DEMAND FOR JURY TRIAL

Plaintiffs, PATRICIA STROBO and JOE STROBO, through their undersigned counsel, hereby sue defendants, WILLIAM RICHESON and BLAC INVESTMENTS, INC., and allege as follows:

ALLEGATIONS COMMON TO ALL COUNTS

1. This is a cause of action for damages in excess of $30,000 exclusive of costs and interest and is within the jurisdiction of this court.
2. At all times material hereto, plaintiff PATRICIA STROBO (hereinafter referred to as "Ms. Strobo"), was and is a resident of Marion County, Florida.
3. At all times material hereto, plaintiff JOE STROBO (hereinafter referred to as "Mr. Strobo"), was and is a resident of Marion County, Florida.

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4. Upon information and belief, at all times material hereto, defendant WILLIAM RICHESON (hereinafter referred to as "defendant driver") was and is a resident of Marion County, Florida.
5. Upon information and belief, at all times material hereto, defendant BLAC INVESTMENTS, INC. (hereinafter referred to as "defendant employer"), was and is a Florida profit corporation.
6. On or about March 10, 2021, at approximately 8:00 AM, defendant driver operated a 2018 Dodge motor vehicle near the intersection of State Road 464 and SE 16th Avenue, in Marion County, Florida.
7. At that time and place, defendant driver operated the 2018 Dodge motor vehicle in the course and scope of his agency and/or employment with defendant employer.
8. At that time and place, defendant driver so negligently and carelessly operated and/or maintained the 2018 Dodge motor vehicle that he caused a collision with a motor vehicle operated by Ms. Strobo.
9. Venue is proper in this court because the incident which gave rise to this cause of action occurred in Marion County, Florida.

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COUNT I

MS. STROBO'S AUTO NEGLIGENCE CLAIM AGAINST DEFENDANT DRIVER

10. Ms. Strobo restates and realleges paragraphs one through nine of this complaint as if fully set forth herein.
11. At the time of the collision, defendant driver owed Ms. Strobo the following duties:
    a. To operate his vehicle safely for the conditions;
    b. To keep a proper lookout for traffic;
    c. To obey applicable traffic laws and norms; and

d. To avoid causing collisions with other motorists.

12. At the time of the collision, defendant driver negligently breached the duties he owed Ms. Strobo in the following ways:

    a. Negligently failing to operate his vehicle safely for the conditions;

    b. Negligently failing to keep a proper lookout for traffic;

    c. Negligently failing to obey applicable traffic laws and norms; and

    d. Negligently causing a collision with another motorist.

13. As a direct and proximate result of the negligence of defendant driver, Ms. Strobo suffered a significant and permanent loss of an important bodily function, a permanent injury within a reasonable degree of medical probability, significant scarring, bodily injury and resulting pain and suffering, disability, inconvenience, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, and aggravation of a previously existing condition. The losses are either permanent or continuing and Ms. Strobo will continue to suffer these losses in the future.

WHEREFORE, Ms. Strobo demands judgment against defendant driver for compensatory damages in excess of $30,000, together with costs of this action and all other relief to which she may be entitled and all other relief deemed appropriate, and further demands a trial by a jury on all issues triable as of right by a jury.

COUNT II

MR. STROBO'S LOSS OF CONSORTIUM CLAIM AGAINST DEFENDANT DRIVER

14. Mr. Strobo restates and realleges paragraphs one through nine and 11-13 of this complaint as if fully set forth herein.

15. At all times material hereto, Mr. Strobo and Ms. Strobo were and are legally married as defined by the laws of the state of Florida.

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16. Since the time of the collision, Mr. Strobo and Ms. Strobo have lived together continuously as husband and wife.
17. As a result of the injuries sustained by Ms. Strobo in the crash, the marital relationship between Mr. Strobo and Ms. Strobo has been negatively affected.
18. As a direct and proximate result of the negligence of defendant driver, Mr. Strobo suffered the loss of consortium, society, affection, companionship, assistance, comfort, services, and financial and other support of his wife, Ms. Strobo.

WHEREFORE, Mr. Strobo demands judgment against defendant driver for compensatory damages in excess of $30,000, together with costs of this action and all other relief to which he may be entitled, and further demands a trial by a jury on all issues triable as of right by a jury.

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COUNT III

MS. STROBO'S VICARIOUS LIABILITY CLAIM UNDER RESPONDEAT SUPERIOR AGAINST DEFENDANT EMPLOYER

19. Ms. Strobo restates and realleges paragraphs one through nine, 11, and 12 of this complaint as if fully set forth herein.
20. Because at the time of the subject collision defendant driver operated the 2018 Dodge motor vehicle motor vehicle within the course and scope of his agency and/or employment with defendant employer, defendant employer is responsible for the damages and injuries caused by the negligence of defendant driver pursuant to the doctrine of respondeat superior.
21. As a direct and proximate result of the negligence of defendant driver, for which defendant employer is liable, Ms. Strobo suffered a significant and permanent loss of an important bodily function, a permanent injury within a reasonable degree of medical probability,

significant scarring, bodily injury and resulting pain and suffering, disability, inconvenience, loss of capacity for the enjoyment of life, expense of hospitalization, medical and nursing care and treatment, and aggravation of a previously existing condition. The losses are either permanent or continuing and Ms. Strobo will continue to suffer these losses in the future.

WHEREFORE, Ms. Strobo demands judgment against defendant employer for compensatory damages in excess of $30,000, together with costs of this action and all other relief to which she may be entitled and all other relief deemed appropriate, and further demands a trial by a jury on all issues triable as of right by a jury.

COUNT IV
MR. STROBO'S LOSS OF CONSORTIUM CLAIM AGAINST DEFENDANT EMPLOYER

22. Mr. Strobo restates and realleges paragraphs one through nine, 11-13, 15-17, and 20-21 of this complaint as if fully set forth herein.
23. As a direct and proximate result of the negligence of defendant driver, for which defendant employer is liable, Mr. Strobo suffered the loss of consortium, society, affection, companionship, assistance, comfort, services, and financial and other support of his wife, Ms. Strobo.

WHEREFORE, Mr. Strobo demands judgment against defendant employer for compensatory damages in excess of $30,000, together with costs of this action and all other relief to which he may be entitled, and further demands a trial by a jury on all issues triable as of right by a jury.

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DEMAND FOR JURY TRIAL

Ms. Strobo and Mr. Strobo demand a trial by jury against defendant driver and defendant employer on all issues so triable.

DATED December 15, 2021.

ALLEN LAW FIRM, P.A.

/s/ David Carlson
William T. Allen, Jr., Esq.
Florida Bar No. 950180
Steven M. Brady, Esq.
Florida Bar No.: 749516
David Carlson, Esq.
Florida Bar No.: 124058
2550 S.W. 76th Street, Suite 150
Gainesville, Florida 32608
Phone: (352) 331-6789
Fax: (352) 331-6785
Primary email: service@allenlaw.com
Secondary email: kimberly@allenlaw.com
Attorneys for Plaintiffs

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